Upstack Studio Sdn. Bhd.
contact@upstackstudio.com

Mutual Non-Disclosure Agreement

THIS MUTUAL NON-DISCLOSURE AGREEMENT (hereinafter the "**Agreement**") is made by and between **Upstack Studio Sdn. Bhd.** (hereinafter referred to as "**the Company**") and the **Client** as named in the signature column below.

The Company and **Client** are sometimes collectively referred to herein as the "Parties" and individually as a "Party". A Party includes the entity named herein, its successors and assigns, any of its present or future corporate parents, subsidiaries, and organizations controlled by, controlling, or under common control with such Party.

Recitals

Whereas, the Parties intend to hold discussions and conduct evaluations and/or negotiations concerning **Software Development Services** (hereinafter referred to as the "**Purpose**").

Whereas, in the course of such discussions, evaluations, and/or negotiations, it is anticipated that both Parties may disclose to each other from time to time certain non-public, confidential, and/or proprietary information relating to its business.

Whereas, the Parties are willing to provide for the conditions of such disclosure of Confidential Information and the rules governing its use and the protection thereof.

NOW THEREFORE, the Parties agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

Used in this Agreement the term "**Confidential Information**" shall mean any information or data disclosed by one Party or one of its Affiliates (as defined in Section 14 below) (the "**Disclosing Party**") to the other Party (the "**Receiving Party**"), including but not limited to any technical and engineering information, designs, drawings, calculations, literature, blueprints, specifications, manufacturing, assembly, tests, installation, service and inspection instructions, part lists, technical, operating and service manuals, training materials, strategies, marketing plans and market intelligence data and other data, software, hardware and

know-how or any manner of disclosure of such Confidential Information that the Parties may elect to use during the life of this Agreement, either in writing, orally or visually.

Confidential Information shall include any derivatives therefrom created by the Receiving Party. For the purpose of this Agreement, "**derivatives**" shall mean any derivatives from improvement on or translation, abridgment, adaptation, or other change of the Confidential Information such as without being limited to: reports, tests, or evaluation results.

2. EXCLUSIONS

Confidential Information does not include any information which:

1. has come into the public domain prior to, or after disclosure thereof and in such case through no wrongful act of the Receiving Party or its employees or of its Affiliates (as defined in Section 14 below) employees to whom the disclosure of the Information is reasonably required for the purpose of this Agreement ("**Authorised Person**"); or
2. has been lawfully received from a third party without restrictions or breach of this Agreement; or
3. is independently developed or created by the Receiving Party, provided that the Receiving Party can show that such development or creation was accomplished by or on behalf of the Receiving Party without the use of or reference to the Confidential Information; or
4. is approved for release or use by prior written consent of an authorized representative of the Disclosing Party; or
5. is disclosed by the Receiving Party to satisfy the legal demand by a competent Court of Law or governmental body, provided however that (i) when reasonably possible, the Receiving Party shall advise the Disclosing Party prior to disclosure so that the Disclosing Party has an opportunity to defend, limit or protect against such production or disclosure, and (ii) the Receiving Party will disclose only that portion of the Confidential Information which is legally required to be disclosed and (iii) the Receiving Party will exercise its reasonable efforts to obtain a protective order or other reliable assurance that confidential treatment will be accorded to any Confidential Information required to be disclosed.

3. USE OF CONFIDENTIAL INFORMATION

The Receiving Party agrees to use the Confidential Information only for the Purpose. All Confidential Information disclosed to the Receiving Party shall (i) be used and disclosed only to such Authorised Person and solely for the Purpose and (ii) be protected and kept in confidence by the Receiving Party which must use the same degree of care and safeguard as it uses to protect its own Confidential Information of like importance and not less than reasonable care.

4. NO OBLIGATION TO DISCLOSE

Nothing in this Agreement may be construed and compelling any Party hereto to disclose any Confidential Information to the other. Each Party, to the extent of its rights to do so, shall disclose to the other Party any Confidential Information which such a Disclosing Party deems appropriate to fulfill the Purpose.

5. DISCLAIMER

All Confidential Information supplied hereunder is supplied on an "as is" basis and the Disclosing Party gives no representation or warranty as to its accuracy, completeness, or fitness for any purpose. The Disclosing Party shall not be liable for any loss or damage suffered by the Receiving Party as a result of the use of the Confidential Information.

6. RETURN OF MATERIALS

All documents or other tangible objects containing Confidential Information, and all copies of those documents or objects, are and remain the exclusive property of the Disclosing Party. If they are in the possession or under the control of the Receiving Party at the date of termination of this Agreement, and in any event at any time upon request of the Disclosing Party, the Receiving Party shall execute the disposal of the Confidential Information. Disposal means the execution of reasonable measures to return or destroy all copies, including electronic data. Destruction shall be confirmed in writing within 30 days from termination or from the date of request, as the case may be.

The provisions for disposal shall not apply to copies of electronically communicated Confidential Information made as a matter of routine information technology and to Confidential Information or copy of it that must be stored by the Receiving Party or its advisors according to the provisions of mandatory law or regulation, provided that this Confidential Information or copy of it shall be subject to continuing obligations of

confidentiality under this Agreement, but no further use shall be permitted as from the date of the request or termination.

In addition, the **Client** and the **Company** are each entitled to retain a copy of the Confidential Information in their respective legal department for record purposes only.

7. NO LICENCES GRANTED

It is expressly understood and agreed by the Parties hereto that the disclosure and provision of Confidential Information under this Agreement by any Party to the other Party shall not be construed as granting to the Receiving Party any rights whether express or implied by license or otherwise on the matters, inventions or discoveries to which such Confidential Information pertains or any copyright, trademark or trade secret rights including any license or property under any invention, discovery, patent, copyright or other industrial or intellectual property rights, now and in the future, implied, held, made, obtained, obtainable or licensable, in relation with Confidential Information supplied hereunder.

8. COMPUTER PROGRAM

With respect to any Confidential Information being a computer program whatever the form, the state of achievement, or the medium, the Receiving Party shall not, to the extent permitted by law, without the prior written permission of the Disclosing Party (i) transfer or copy the Confidential Information in whole or in part in any way, (ii) modify, adapt, correct, translate, or otherwise alter the Confidential Information in any way or prepare, develop any derivative works of the Confidential Information or any part of it.

9. NO OBLIGATION TO PROCEED

Nothing in this Agreement shall obligate either Party to proceed with any transaction with the other Party, and either Party reserves the right, in its sole and absolute discretion, to decline to participate in a business opportunity and to terminate discussions.

10. NON DISCLOSURE OF NEGOTIATIONS

Except as provided in Section 3, each Party agrees that it will not, without the other Party's prior written approval, disclose to any third party the fact that the Parties are holding discussions and/or conducting evaluations and/or negotiations concerning the Purpose.

11. NON EXCLUSIVITY

Nothing in this Agreement shall preclude either Party from dealing with other parties on identical or similar subject matter to that covered in this Agreement.

12. TERM

This Agreement shall come into force on the Effective Date of this Agreement and be valid only if signed by the Client. This Agreement is intended to cover Confidential Information received by the Receiving Party both on and subsequent to the date hereof. Unless extended by mutual written consent of both Parties hereto this Agreement shall expire one (1) year from the Effective Date.

13. SURVIVAL

The obligations set forth in this Agreement shall bind the Parties for a period of five (5) years from the date of disclosure of the respective Confidential Information, and such obligations shall survive after the termination or earlier expiration of this Agreement for the term set forth herein.

14. DISCLOSURE TO AFFILIATES

The Disclosing Party recognizes that the Receiving Party is part of an organization of multiple legal entities in several countries and that it may be necessary for the Receiving Party to provide Confidential Information to its Affiliates. For this purpose, the Disclosing Party agrees that the Receiving Party shall be free to disclose Confidential Information on a need-to-know basis, and under the same obligations of confidentiality as are set out herein, to its Affiliates. Either Party shall assume responsibility for any breach by one of its Affiliates of the terms of this Agreement and any such breach shall be deemed to be a breach by that Party.

For the purpose of this Agreement “Affiliates” shall mean (i) any company directly or indirectly controlling the Receiving Party, (ii) any company directly or indirectly controlled by the Receiving Party, or (iii) any company that is directly or indirectly controlled by the company controlling the Receiving Party and, for this purpose, the term "control" shall mean possession, directly or indirectly, of power to direct or cause the direction of the management or policies (whether through ownership of securities or partnership or other ownership

interests, by contract or otherwise) and “controlling” and “controlled” shall be construed accordingly.

15. COMPLIANCE WITH EXPORT LAWS

Each Party shall comply with applicable export laws and regulations with respect to any Confidential Information received under this Agreement.

16. MISCELLANEOUS

This Agreement constitutes the entire agreement with respect to the Confidential Information disclosed herein and supersedes all prior or contemporaneous oral or written agreements concerning such Confidential Information. This Agreement is only for the purpose of protecting proprietary and/or confidential information and shall not be construed as a teaming agreement, joint venture, or other contractual arrangements. This Agreement may not be amended except by a written agreement signed by authorized representatives of both Parties. The failure to enforce or to require the performance at any time of any one of the provisions of this Agreement shall not be construed to be a waiver of such provision.

17. APPLICABLE LAW AND COURTS

The existence, validity, construction, performance, and termination of this Agreement shall be governed in accordance with the laws of Malaysia, without giving effect to its conflicts of law principles. Any disputes in connection with or arising out of this Agreement that cannot be settled amicably shall be exclusively heard, and any actions exclusively brought, in the applicable Kuala Lumpur (Malaysia) courts.

IN WITNESS WHEREOF, each of the Parties hereto has caused this Agreement to be executed by its duly authorized officers or representatives.

Upstack Studio Sdn. Bhd.	**Company:**
Registration Number: 201701016784 (1230949-D)	**Registration Number:**
Address: 3.03, Wisma New Asia, Jalan Raja Chulan, 50200 Kuala Lumpur.	**Address:**
Sign:	Sign:
Name: Ching Hua Chiam	Name:
NRIC/Passport No.: 920329-05-5093	NRIC/Passport No.:
Title: Director	Title:
	Effective Date: